

Ashok Kumar Gupta v. State of U.P.

Allahabad High Court · Division Bench · 12 December 2022 · Writ-C No. 35816 of 2022 · Writ-C No. 35816 of 2022 · **Second writ for the same Clause 6.5 bill-correction relief dismissed; alleged non-compliance of the earlier order is to be pursued by contempt.**

HEADNOTE

A second writ seeking correction of an electricity bill is not maintainable where an earlier writ for the same relief has already been disposed of with liberty to approach the competent authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005. Alleged failure to supply a corrected bill in compliance with that order is to be pursued by contempt, not by a fresh writ.

FACTUAL SUMMARY

Ashok Kumar Gupta approached the Allahabad High Court a second time seeking correction of his electricity bill. The same relief had already been claimed in Writ-C No. 17001 of 2022, disposed of on 14 June 2022 with liberty to approach the competent authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005. Counsel submitted that a correct bill had still not been supplied in compliance with that order. Counsel for the respondents was heard.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

second writ after Clause 6.5 remittal; contempt for non-compliance

HOLDING

A second writ seeking the same electricity-bill correction already remitted to the competent authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005 is not maintainable. Non-supply of a corrected bill in alleged non-compliance of the earlier order is to be pursued by contempt, not by a fresh writ for the same relief. ¶ 1

PRINCIPLE TAGS

contempt-of-6.5-writ-does-not-redecide-bill After an earlier writ had remitted bill-correction to Clause 6.5, the Court refused to re-decide the bill on a second writ and left alleged non-compliance to be pursued by contempt. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND COMPLIANCE WITH THE 14.06.2022 CLAUSE 6.5 ORDER

The Court did not examine the bill or whether the licensee had complied with the earlier remittal; it dismissed the second writ and pointed the petitioner to contempt. ¶ 1